

National Employment Guarantee (Orissa Rural Employment Guarantee Council) Rules, 2007

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National Employment Guarantee (Orissa Rural Employment Guarantee Council) Rules, 2007

Rule

NATIONAL-EMPLOYMENT-GUARANTEE-ORISSA-RURAL-EMPLOYMENT-GUARANTEE-COUNCIL-RULES-2007 of 2007

Published on 1 May 2007

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National Employment Guarantee (Orissa Rural Employment Guarantee Council) Rules, 2007

Published vide Notification No. 13885/IIRE (1)-17/2005/PR., Orissa Gazette Extraordinary No. 728 dated 1.5.2007 w.e.f. 1.8.2007

No. 13885/IIRE (I)-17/2005/PR. - Whereas certain draft rules namely National Employment Guarantee (Orissa Rural Employment Guarantee Council-Constitution & Function) Rules, 2007 were published in exercise of powers conferred by Subsection (1) read with Clause (c) of Sub-section (2) of Section 32 of the National Rural Employment Guarantee Act, 2005 (42 of 2005) vide Notification of Panchayati Raj Department of Government of Orissa No. 4949-RE-73/2005

(Part IV)-PR. dated the 15th February in the Orissa Gazette Extraordinary Sl. No. 451 dated 14th March, 2007 inviting objections and suggestions from persons likely to be affected thereby before the expiry of 15 days from the date of publication of notification in the official gazette.

And whereas Gazette copies of the draft rule in which they were published were made available to the public on 15th March 2007.

And whereas no objections or suggestions has been received from any person in this regard.

Now, therefore, the exercise of the powers conferred by Sub-section (1) read with Clause (c) of Sub-section (2) of Section 32 of the National Rural Employment Guarantee Act, 2005 (42 of 2005) the State Government hereby makes the following rules namely :

1.

Short title and commencement.

(1)

These rules may be called the National Employment Guarantee (Orissa Rural Employment Guarantee Council) Rules, 2007.

(2)

They shall come into force on such date as the State Government may, by notification, appoint.

2.

Definitions.

- In the rules, unless the context otherwise requires-

(a)

"Act" means the National Rural Employment Guarantee Act, 2005 (Act 42 of 2005);

(b)

"District Programme Coordinator" means the Chief Executive Officer of the Zilla Parishad in the district;

(c)

"Programme Officer" means the Executive Officer of the Panchayat Samiti in the Block;

(d)

"Scheme" means the Scheme notified under Section 4 of the Act by the State Government (NREGS-Orissa);

(e)

"State Council" means the Orissa Rural Employment Guarantee Council constituted under Section 12 of the Act;

(f)

All other words and expressions used in these rules but not defined shall have the meaning respectively assigned to them in the Act and Scheme.

3.

Constitution of State Council.

- The State Council shall be constituted with the Chief Minister as the Chairman, the Minister, Panchayati Raj as the ex officio Vice-Chairman and with the following official and non-official members, namely ;

Official Members :

(1)

Chief Secretary

(2)

Development Commissioner & Secretary, Planning & Co-ordination

(3)

Agriculture Production Commissioner

(4)

Principal Secretary/Secretary, Finance

(5)

Principal Secretary/Secretary, Rural Development

(6)

Principal Secretary/Secretary, Labour

(7)

Principal Secretary/Secretary, Forest & Environment

(8)

Principal Secretary/Secretary, Works

(9)

Principal Secretary/Secretary, Water Resources

(10)

Principal Secretary/Secretary, S.C. & S.T. Development

(11)

Principal Secretary/Secretary, Law

(12)

Principal Secretary/Secretary, Panchayati Raj and State Programme Coordinator and Member-Secretary of the Council.

Non-Official Members ;

(a)

One Sarpanch of Gram Panchayat

(b)

One Chairperson of Panchayat Samiti

(c)

One President of Zilla Parishad

(d)

Four persons from organisation of workers and disadvantaged groups.

4.

Manner of appointment and term of non-official members.

(1)

The Chairman shall nominate the non-official members

(2)

The Sarpanch of the Gram Panchayat, Chairperson of Panchayat Samiti and President of Zilla Parishad who shall be nominated to the Council shall have a three year term. Where the nomination is by cessation, the successor in office shall be a member of the remainder of the term.

(3)

The nomination of representative of workers and disadvantaged groups will be for a period of three years. Where the nomination is made by designation the successor will be a member for the remainder of the term.

(4)

Not less than one-third of the non-official members shall be women.

(5)

Not less than one-third of the non-official members shall belong to the Scheduled Castes, Scheduled Tribes and other Backward Classes.

(6)

The State Government may renew/extend the term of non-official member up to five years. The same person can be renominated even after five years.

(7)

The non-official members will be entitled to T.A./D.A. and other perks as admissible to Class-I Officers of the State, (1st grade).

5.

Constitution of the Committees.

- The Chairman of the State Council will constitute such number of Committees to assist the Council in discharge of its duties and functions as required. The Committees will meet as often as possible and ordinarily the recommendations of the Committee will be placed before the Council for approval and implementation. In case of exigency with the approval of Chairman, the recommendation of the Committees will be implemented and the same will be ratified in the next meeting of the State Council.

6.

The functions of the State Council.

(1)

The functions of the State Council will be as follows :

- (a)
Advising the State Government on all matters concerning the scheme and its implementation in the State;
- (b)
Determining the preferred works;
- (c)
Reviewing the monitoring and redressal mechanisms from time to time and recommending improvements;
- (d)
Promoting the widest possible dissemination of information about this Act and the Schemes under it;
- (e)
Monitoring the implementation of the Act and the Scheme in the State and coordinating such implementation with the Central Council;
- (f)
Preparing the annual report to be laid before the Orissa Legislative Assembly by the State Government;
- (g)
The power to undertake an evaluation of the Scheme operating in the State and for that purpose to collect or cause to be collected statistics pertaining to the rural economy and the implementation of the Schemes and Programmes in the State;
- (h)
Any other duty or function as may be assigned to it by the Central Council or the State Government.

(2)
The Orissa Rural Employment Guarantee Council will sit not less than once in six month to transact business at any place of the State and can take up proceedings as per agenda.

Panchayati Raj Department

Notification

The 27th November 2007

No. 39299-II-RE(1)-17/2005/PR. - In pursuance of Rule 3 of the National Employment Guarantee (Orissa Rural Employment Guarantee Council) Rules, 2007, the State Government have been pleased to constitute the Orissa Rural Employment Guarantee Council in the following manner.

1.

Chief Minister

...

Chairman

2.

Minister, Panchayati Raj

...

Ex-officio Vice Chairman

Official Member :

1.

Chief Secretary & Chief Development Commissioner

...

Member

2.

Development Commissioner & Secretary, Planning &
Co-ordination

...

Member

3.

Agriculture Production Commissioner

...

Member

4.
Principal Secretary/Secretary. Finance
...
Member
 5.
Principal Secretary/Secretary, R.D.
...
Member
 6.
Principal Secretary/Secretary, Labour
...
Member
 7.
Principal Secretary/Secretary, Forest & Environment
...
Member
 8.
Principal Secretary/Secretary, Works
...
Member
 9.
Principal Secretary/Secretary, Water Resources
...
Member
 10.
Principal Secretary/Secretary, S.C. & S.T. Development
...
Member
 11.
Principal Secretary/Secretary, Law
...
Member
 12.
Principal Secretary/Secretary, Panchayati Raj and State
Programme Coordinator and Member-Secretary of the Council
...
Member Secretary
- Non-official Members :
1.
Shri Bijay Naik, President, Bhadrak Zilla Parisada
 2.
Smt. Uma Devi Behera (S.C.) Chairperson, Sheragada Panchayati
Samiti, Ganjam
 3.
Shri Sairendri Bariha (S.T.) Sarpanch, Dangbahal,
P.O.-Laramba. Block-Patnagarh, Dist. Bolangir.
 4.
Shri Utkalmani Satpathy, Orissa Nirman Majdoor Sabha
 5.
Shri Jagabandhu Majhi (S.T.) Raigha Nawarangpur
 - 6.

Golapi Sahu, L.I.C. Colony, Redhakhol.

7.

Shri Khirod Chandra Mallick, Chairman. BISWA At-Danipalli,

P.O.-Budharaja, Dist-Sambalpur

The non-official members of the Council will hold Office for a period of three years. Where the nomination is made by designation the successor will be a member of the Council for the reminder term. The powers and functions of the Orissa Rural Employment Guarantee Council will be as prescribed in the National Employment Guarantee (Orissa Rural Employment Guarantee Council) Rules, 2007.

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